

APPLICATION BOOKLET



Financial Lease Agreement

Please note that a larger size print of this Agreement can be made available to the Customer if required.

This Agreement is entered into between Nexgen Capital Pty Limited trading as Nexgen Equipment Rentals ABN 32 606 252 957 ("we" or "us" or "Financier"), the Customer named below ("Customer") and each person named below as a guarantor ("Guarantor"). The Financier agrees to lease the Goods described below to the Customer, and the Customer agrees to take the Goods on lease, for the Term described below and otherwise on the terms of this Agreement.

Customer information

Full Name:	Some Long Name Comp.				ABN:	12323231321	
Trading as:	Long trade name						
Address:	221B Baker Street						
	London			State:	ACT	Postcode:	2000
Contact:	Arthur Conan Doyle	Tel:	(02) 4342-1232	Fax:	(02) 4342-1232	Mobile:	+61 942 348 8878
Email:	geraldtejero@nexgen.com.au			Website:	http://somalongcompany.com.au		
Industry:	PROFESSIONAL OFFICE		No. of Employees:	0	Year Established:	1	
Goods Location:	221B Baker Street		State:	London	Postcode:	1234	
Trade Ref:	A Study in Scarlet		Tel:	(02) 4342-1232	Contact Person:	Mr. Hudson	
Accountant:	James Moriarty		Tel:	(02) 2340-5444	Contact Person:	Mrs. Hudson	

Guarantor(s) Information

Full Name:	Sherlock Holmes				ABN:	0919231921	
Address:	220B Baker Street	Suburb:	London	State:		Postcode:	2000
DOB:		Driver Licence No:	2332323243A	Tel:	(02) 4342-1232		
Home:	Yes	Value:	\$ 600,000	Mortgaged Value:	\$ 400,000		

Insurance details

Name of the Insurer:	Insurance Company	Email:	insurertest@text.com
Policy Number:	A/127/2016		

You must arrange and keep the equipment insured against loss and all other insured risks for its full replacement value during the entire Agreement.

Lease Terms

Term (Months):	60	Commencement Date:					
Payment Period:	Monthly	Payment:		GST:	\$ 0.00	Total:	\$ 0.00
		Documentation Fee:					

Payments are payable at the beginning / end (delete as applicable) of the Payment Periods. The first Payment is due on the Commencement Date / / at the end of the first Payment Period (delete as applicable). Subsequent Rental Payments are due on the same day of the Payment Period as the first Rental Payment (or on such other day as the Financier otherwise agrees in writing).

Goods

Quantity:	Description:	Item No.:	Serial No.:

Driver License Verification

Customer Driver License:

2332323243A

State of Issue:

Expiry Date:

Name:

Sherlock Holmes

DOB:

Address:

220B Baker Street, London

Postcode:

2000

Customer signature

I/We: agree to be bound by the terms and conditions of this Agreement and irrevocably authorise our employee(s) as delegated representatives to accept and acknowledge delivery of the Equipment, Software and Services on our behalf.

Full Name:	Position:	Customer Signature:	If this is an electronic document, the adjacent is my signature and my execution of this electronic document.	Date
Arthur Conan Doyle	Director			18/05/2021

Guarantor's signature

IMPORTANT NOTICE FOR THE GUARANTOR - PLEASE READ BEFORE YOU SIGN:

- You should read this Agreement carefully and ensure that you understand it and the financial and other obligations that you are guaranteeing before you sign it.
- You should obtain independent legal and financial advice.
- You should make your own inquiries about the creditworthiness, honesty and financial position of the Customer before you sign.
- When you sign this Agreement you will become personally responsible for paying the amounts that the Customer owes under this Agreement, if the Customer does not pay any of those amounts. You will also be responsible for paying our costs of enforcing the guarantee.

I confirm I have read the Agreement and agree to guarantee the obligations of the Customer under the Agreement.

Full Name:	Guarantor Signature(s):	If this is an electronic document, the adjacent is my signature and my execution of this electronic document.	Date
Sherlock Holmes			18/05/2021

Business use declaration

(For use if the customer is not an incorporated entity)

PURPOSE DECLARATION - NATIONAL CREDIT CODE

I/we declare that the goods to be hired by me/us from the lessor under this Agreement are to be hired wholly or predominantly for business purposes.

IMPORTANT: You should **only** sign this declaration if the goods are to be hired wholly or predominantly for business purposes. By signing this declaration you may **lose** your protection under the National Credit Code.

Full Name:	Signature:	If this is an electronic document, the adjacent is my signature and my execution of this electronic document.	Date
Arthur Conan Doyle			18/05/2021

Execution by the Financier

Date: / /
Signed for and on behalf of Nexgen Capital Pty Ltd Trading as Nexgen Equipment Rentals ABN 32 606 252 957.

Authorised Signatory

Privacy and Credit Reporting Policy

Privacy Act 1988 (as amended, effective 12 March 2014)

The clauses below describe how Nexgen Equipment Rentals ABN 32 606 252 957 ("we"/"us") may collect, use, handle and disclose your personal information. They also describe the privacy-related matters to which you give your consent in applying for a lease facility from us. Your personal information will be treated in accordance with the Privacy Act 1988 ("Privacy Act") as well as the Credit Reporting Privacy Code.

a. The clauses below set out:

- I. Consents that you give us in relation to your personal information by applying for finance from us or otherwise in connection with credit that we offer; and
- II. Important information about our collection, use, disclosure and management of your personal information.

Collection of your personal information

b. We will ordinarily collect your personal information about you for the following purposes, and to the extent not already authorised by law, you agree to us using and disclosing that information for these purposes. This is dependent on the circumstances and the nature of the products and services you are obtaining from us:

- I. assessing and processing existing or future application(s) for credit and, where applicable, insurance or extended warranty products, managing your account or other products, responding to your questions and performing our obligations in relation to credit and insurance products provided to you;
- II. protecting us and our assets (including against fraud) and selling our assets (including by assigning any debts);
- III. enforcing our rights (including undertaking debt collection) in connection with any credit provided to you;
- IV. considering any variation requests;
- V. managing, changing and improving our systems and processes;
- VI. complying with laws. Various Australian laws may require us to collect your personal information, or we may need to do so to be able to comply with other obligations under those laws. These laws include: the Anti-Money Laundering and Counter-Terrorism Financing Act and other anti-money laundering legislation (for example, for identity verification), the National Consumer Credit Protection Act (for example, for responsible lending), the Financial Sector (Collection of Data) Act, the Corporations Act (Cth) and other regulatory legislation (for example, requiring us to maintain client and transaction records, to provide information relating to loans to APRA and to make reports and provide other information to regulators such as ASIC) and the Taxation Administration Act, the Income Tax Assessment Act and other taxation laws (for example, to comply with information requests issued by the Commissioner of Taxation);
- VII. marketing products and services provided by us and our related entities;
- VIII. developing an understanding of goods and services you may be interested in receiving from us and related entities;
- IX. compiling statistical data, e.g. credit scoring information.

c. We collect your personal information primarily from you. However, sometimes we may collect personal information about you from third parties for the purposes described above where it is unreasonable or impracticable to collect it directly from you, and we may do this on one or more occasions. For example, even though your application is for Commercial credit, we may collect information about you from a business which provides information about consumer creditworthiness for the purpose of assessing your application. Other third parties that we may collect your information from include the supplier of the Equipment; our agents; other credit providers; insurers; any of your employers, former employers, referees, banks, landlords, guarantors, accountants, lawyers and financial advisers; your executor, administrator or attorney; service providers to us (including debt collection agencies, introducers, private investigators, professional advisers); professional organisations; internet sources; public and subscriber-only databases; credit reporting bodies, any person considering purchasing the business or any credit facility (or any part of the business or credit facility) the subject of any of our products or any person to whom we may assign your credit contract/s (and their advisors and representatives); any person considered necessary in our view to execute your instructions; and government authorities. The circumstances in which we may do so include, for example, where we need information from a third party to assist us to deal with any application or request made by you (such as to verify information you have provided or to assess your circumstances) or to assist us to locate or communicate with you.

d. The consequences of you not providing to us the personal information that we require can include that we will not be able to approve your application for credit or a related product, or that we will not be able to deal with future requests or queries from you in connection with credit we provide.

e. You agree that we can disclose your personal information (including, where permitted to do so under the Privacy Act, your credit information and credit eligibility information) for the purposes described above to:

- I. Your co-applicant (if any); any of our related bodies corporate; our assignees or potential assignees; the supplier of any goods or services financed with credit we provide; any other supplier appointed by us, credit reporting bodies or any business providing information about commercial credit worthiness; other credit providers; card issuers; your assignees or proposed assignees; debt collection agencies; banks and financial advisers; lawyers, accountants and other professional advisers; any suppliers or contractors to us who need to have access to our personal information for the purpose of providing services to us or you (including, without limitation, physical and electronic file storage suppliers, receivables management suppliers and data warehouses); any person specifically authorised by you in writing; and
- II. Any person as permitted or required by law.

We may disclose your personal information to overseas recipients

f. Some of the organisations to whom we may disclose your personal information (including your credit information or credit eligibility information) will be located overseas and may not have an Australian link. The countries in which overseas recipients are likely to be located currently include the Philippines and New Zealand (for an updated list of countries from time to time, please see our Privacy Policy and Credit Reporting Policy available on our website). You acknowledge that by consenting to us disclosing your personal information to overseas recipients, Australian Privacy Principle ("APP") 8.1 will not apply to the disclosure (which means that we will not be obliged under the Privacy Act to take reasonable steps to ensure that an overseas recipient does not breach the APPs, and we may not be liable under the Privacy Act if the recipient does not act consistently with the APPs). By applying for this product, you consent to disclosures to overseas recipients.

Important information about credit reporting

g. Our website at www.nexgenequipmentrentals.com.au contains important information about credit reporting, including the credit reporting bodies that we deal with, credit information that we may give them about you (such as about defaults and serious credit infringements) and details regarding how those credit reporting bodies use and disclose that information to credit providers and their policies about managing the information. You have important rights regarding access, correction and complaints relating to your credit reporting information, as well as certain rights to prevent its use for direct marketing or where you have been a victim of fraud. You will also find details about these rights on the same page. You can also ask us to provide you with a copy of this important information.

- h. You also agree that we or any credit provider we choose can obtain, from any business providing information about commercial creditworthiness, consumer and or commercial credit reports about you for the purposes of assessing applications for commercial credit.
- i. You agree that we can disclose your name, residential address and date of birth to a credit reporting body so that the credit reporting body can provide an assessment to us of whether the information provided by you matches (in whole or in part) the information in the credit reporting body's possession or control (which may include personal information held by the credit reporting body about you or other individuals). This will be done for the purpose of verifying your identity as required under Australia's anti-money laundering and counter-terrorism laws where applicable. If you would prefer us to use another form of verification, such as your passport or driver's licence, you must notify us and provide us with any information that we request.

Marketing products and services to you

- j. You agree to us using and disclosing your personal information (including your telephone number, regardless of whether it is listed on the Do Not Call Register and your email or other electronic addresses) to provide you with information about our other products and services and the products and services offered by our dealers, insurers (such as insurers who provide credit-related insurance), our related companies or suppliers. This includes communicating with you via emails, text messages, phone messages or other electronic messages (without an unsubscribe facility). If you no longer wish us to use or disclose your personal information for these purposes, please tell us by contacting us on 1300 763 738.

Information about other persons

- k. If you provide information about any other person, such as a referee, you agree to tell them:
- I. that you are providing this information to us;
 - II. our contact details on this form; and
 - III. the reason you are providing their information.

Electronic communication

- l. To protect your privacy, we recommend that any email address you provide to us be your personal email address rather than, for example, an email address accessible by your work colleagues or family members.

Your access to personal information correction and complaints

- m. You have rights to request access to, or correction of, personal information that we hold about you, including credit-related information. You also have rights to make a complaint if you consider that we have not complied with the Privacy Act or Credit Reporting Privacy Code in relation to our information. Our Privacy Policy and Credit Reporting Policy www.nexgeneequipmentrentals.com.au/privacy-policy sets out how you can make such requests or complaints and how we will deal with them. For details about our management of credit-related personal information (including credit reporting information) that we hold about you, please see our Privacy Policy and Credit Reporting Policy available at www.nexgeneequipmentrentals.com.au/privacy-policy or by calling us on 1300 763 738.

ACKNOWLEDGMENTS AND CONSENTS AND AUTHORISATION

By signing below:

- a. You acknowledge that this application contains:
- I. important information about privacy (including about credit reporting) that you should read before signing; and
 - II. important privacy-related consents and authorisations (including relating to uses, disclosures and overseas transfers of your personal information);
- b. you acknowledge that various credit checks will be undertaken by us as part of this application as described that you agree to by signing; and
- c. you agree that each consent and authorisation remains in effect until cancelled in writing by you or otherwise relied on by us as permitted by law.

Full Name:	Position:	Customer Signature:	If this is an electronic document, the adjacent is my signature and my execution of this electronic document.	Date
Arthur Conan Doyle	Director			18/05/2021

Direct Debit Request Form

You authorise and request Nexgen Capital Pty Ltd trading as Nexgen Equipment Rental ABN 32 606 252 957 to debit your nominated account shown below:

Full Name:	Some Long Name Comp.				
Address:	221B Baker Street,	State:	ACT	Postcode:	2000
Bank Name:	1111	Branch:	2222		
A/C Name:	3333				
BSB No.:	4444	A/C No:	5555		
Date of 1st Payment:			Frequency:	Monthly	

Full Name:	Signature:		Date
Arthur Conan Doyle		If this is an electronic document, the adjacent is my signature and my execution of this electronic document.	18/05/2021

Customer direct debit request (DDR) service agreement

This is your Direct Debit Service Agreement with Nexgen Capital Pty Ltd trading as Nexgen Equipment Rentals ABN 32 606 252 957 User ID (521008, 483231, 429289, 487672). It explains what your obligations are when undertaking a Direct Debit arrangement with us. It also details what our obligations are to you as your Direct Debit provider. Please keep this agreement for future reference. It forms part of the terms and conditions of your Direct Debit Request (DDR) and should be read in conjunction with your DDR authorisation.

How to contact us

Enquiries

You can contact us directly or alternatively contact your financial institution. You may contact us as follows:

Phone: 1300 763 738

Email: support@nexgenequipmentrentals.com.au

Mail: PO Box 2267, North Parramatta, NSW 1750

All communications addressed to us should include your Customer Number.

Definitions

account means the account held at your financial institution from which we are authorised to arrange for funds to be debited.

agreement means this Direct Debit Request Service Agreement between you and us.

banking day means a day other than a Saturday or a Sunday or a public holiday listed throughout Australia.

debit day means the day that payment by you to us is due.

debit payment means a particular transaction where a debit is made.

direct debit request means the Direct Debit Request between us and you

us or **we** means Nexgen Capital Pty Ltd trading as Nexgen Equipment Rentals ABN 32 606 252 957 (the Debit User) you have authorized by signing a direct debit request.

you means the customer who has signed or authorised by other means the Direct Debit Request.

your financial institution means the financial institution nominated by you on the DDR at which the account is maintained.

Debiting your account

By signing a Direct Debit Request or by providing us with a valid instruction, you have authorised us to arrange for funds to be debited from your account. You should refer to the Direct Debit Request and this agreement for the terms of the arrangement between us and you. We will only arrange for funds to be debited from your account as authorised in the Direct Debit Request.

Amendments by us

We may vary any details of this agreement or a Direct Debit Request at any time by giving you at least 14 days written notice.

Amendments by you

You may change*, stop or defer a debit payment, or terminate this agreement by providing us with at least 7 days notification by:

- writing to: PO Box 2267 North Parramatta, NSW 1750; or
- telephoning us on 1300 763 738 during business hours; or
- arranging it through your financial institution, which is required to act promptly on your instructions.

**Note: in relation to the above reference to "change", your financial institution may "change" your debit payment only to the extent of advising us of your new account details*

NERCL22421

Your obligations

It is your responsibility to ensure that there are sufficient clear funds available in your account to allow a debit payment to be made in accordance with the Direct Debit Request.

If there are insufficient clear funds in your account to meet a debit payment:

- you may be charged a fee and/or interest by your financial institution;
- you may also incur fees and charges imposed or incurred by us; and
- you must arrange for the debit payment to be made by another method or arrange for sufficient clear funds to be in your account by an agreed time so that we can process the debit payment.

You should check your account statement to verify that the amounts debited from your account are correct.

Dispute

If you believe that there has been an error in debiting your account, you should notify us directly on 1300 763 738 and confirm that notice in writing with us as soon as possible so that we can resolve your query more quickly. Alternatively, you can take it up directly with your financial institution. If we conclude as a result of our investigations that your account has been incorrectly debited, we will respond to your query by arranging for your financial institution to adjust your account (including interest and charges) accordingly. We will also notify you in writing of the amount by which your account has been adjusted.

If we conclude as a result of our investigations that your account has not been incorrectly debited, we will respond to your query by providing you with reasons and any evidence for this finding in writing.

Accounts

You should check:

- With your financial institution whether direct debiting is available from your account as direct debiting is not available on all accounts offered by financial institutions.
- Your account details which you have provided to us are correct by checking them against a recent account statement;
- With your financial institution before completing the Direct Debit Request if you have any queries about how to complete the Direct Debit Request.

Confidentiality

We will keep any information (including your account details) in your Direct Debit Request confidential. We will make reasonable efforts to keep any such information that we have about you secure and to ensure that any of our employees or agents who have access to information about you do not make any unauthorised use, modification, reproduction or disclosure of that information.

We will only disclose information that we have about you:

- To the extent specifically required by law; or
- For the purposes of this agreement (including disclosing information in connection with any query or claim).

Notice

If you wish to notify us in writing about anything relating to this agreement, you should write to:

NEXGEN EQUIPMENT RENTALS
PO Box 2267, North Parramatta, NSW 1750

We will notify you by sending a notice in the ordinary post to the address you have given us in the Direct Debit Request. Any notice will be deemed to have been received on the third banking day after posting.

Lease Agreement terms and conditions

1. Definitions

In this Agreement, unless the context otherwise requires:

Acceptance Date means the date that this Agreement is signed for and on behalf of the Financier by an authorised officer.

Business Day means a day on which the Financier is open for business in New South Wales.

Commencement Date means the Commencement Date referred to in the Schedule.

Costs of Repossession means all reasonable costs and expenses incurred by the Financier in effecting, or attempting, repossession of the Goods, satisfying any third party claim, and in storing, repairing to good working order and condition, insuring, valuing and disposing of the Goods after repossession and any costs which are incidental to any of these matters, including reasonable legal costs on a solicitor and client basis.

Customer means the person or entity identified in the Schedule.

Discount Rate means the rate reasonably determined by the Financier to calculate the present value of the Payments, taking into account any costs to the Financier of an early termination. Those costs may include costs under the Financier's funding or hedging arrangements or any corresponding adjustments to them, and the Financier may assess these on a global basis across all or part of its funding and hedging arrangements, not just any specific arrangement for this Agreement.

Early Termination Amount means the sum of:

- a. the Payments (net of GST) which, but for the termination, would have been payable by the Customer under this Agreement as from the date of early termination to the end of the Term (inclusive of any unamortised brokerage or commission), reduced to a present value as at the date of termination by applying the Discount Rate to such Payments; and
- b. the Financier's administrative fee for early termination from time to time (not exceeding one Payment); and
- c. the amount determined in accordance with clause 21.4(a) or 21.5; and
- d. any other amounts due but unpaid under this Agreement.

Goods means the goods described in the Schedule and includes any other items that are deemed to be or form part of the "Goods" under this Agreement.

GST means goods and services tax levied under A New Tax System (Goods and Services Tax) Act 1999 (Clth) and related legislation.

Payments Period means each period set out in the Schedule.

Payments means the payments set out in the Schedule

Person includes any body corporate, association, authority and any other body or entity.

PPSA means the Personal Property Securities Act 2009 (Clth).

PPS Register means the Personal Property Securities Register established under Part 5.2 of the PPSA.

PPS Security Interest means a security interest under the PPSA.

Residual Value means the amount specified in the schedule.

Schedule means the schedule of details at the beginning of this Agreement.

Serial Numbered Property means any Goods which may or must be described by serial number in a registration under the PPSA.

Special Conditions means the additional terms outlined in the Schedule.

Term means the term of this Agreement referred to in the Schedule.

We or **us** or **Financier** means Nexgen Capital Pty Limited trading as Nexgen Equipment Rentals ABN 32 606 252 957 and, where the context permits, includes any of our related bodies corporate or external financiers who may be engaged by us now or in the future. You means the customer referred to in the Schedule

2. Forming a lease agreement

2.1 This Agreement does not bind the Financier until the Financier signs it, even if the Customer has pre-paid any money or obtained delivery of the Goods. This Agreement will bind the Customer once the Financier signs it, even if the Financier does not advise the Customer that it has done so.

2.2 If the Customer takes delivery of any item of Goods from the supplier before the date the Financier signs this Agreement, then the Customer must comply with its obligations under this Agreement,

without binding the Financier to this Agreement, from the time that the Customer takes delivery of the Goods, as if this Agreement had commenced at that time.

3. Title to the Goods

The Customer acknowledges and agrees that:

- a. the Goods remain the property of the Financier at all times and the Customer's rights under this Agreement are personal;
- b. the Customer has no authority to deal with, and will not purport to deal with, or share or transfer possession of, the Goods; and
- c. the Customer must do everything necessary to protect the title of the Financier to the Goods, including assuring third parties of the Financier's ownership of the Goods.

4. Selection and delivery of the Goods

The Customer acknowledges and agrees that:

- a. the Customer has satisfied itself as to the condition of the Goods and their suitability for the Customer's purposes, has not relied on the Financier in deciding to enter into this Agreement and has selected the Goods based upon the Customer's own skill and judgment;
- b. the Customer will, at its own cost, obtain delivery of the Goods, have them installed (if applicable) and put them in good working order; and
- c. the Financier will not be liable for any delay in delivery.

5. Customer Acknowledgments

The Customer acknowledges and agrees that:

- a. to the full extent permitted by law:
 - I. apart from those which are implied by law and which cannot be excluded, all express and implied terms, conditions and warranties (other than those expressly set out in this Agreement) are excluded to the full extent permitted by law;
 - II. the Financier makes no representation or warranty as to the condition, specifications, quality, fitness for purpose, suitability or safety of the Goods or as to the taxation treatment or accounting classification of any transaction evidenced by this Agreement; and
 - III. the Financier is not liable for any damage, injury or loss to any person or property arising from the possession, operation or use of the Goods unless it arose out of, or in connection with, or incidental to any fraudulent or negligent act by the Financier or its partners or employees, or any act or omissions of the Financier or its partners or employees in breach of good faith;
- b. whether or not Schedule 2 of the Competition and Consumer Act 2010 (Clth) or any law to a similar effect applies, the Financier's liability for anything in relation to the Goods or their use, including damage or economic loss to anyone, is limited to the maximum extent permitted by law. Where permitted by law, the Financier's liability is limited:
 - I. in the case of Goods, to the replacement of the Goods (or the supply of equivalent goods), the repair of the Goods, the payment of the cost of replacing the Goods (or of acquiring equivalent goods) or the payment of the cost of having the Goods repaired; or
 - II. in the case of services, to the supplying of the services again or the payment of the cost of having the services supplied again;
- c. in no event will the Financier be liable for any indirect, consequential or economic loss or damage arising under or in connection with this Agreement unless it arose out of, or in connection with, or incidental to any fraudulent or negligent act by the Financier or its partners or employees, or any act or omissions of the Financier or its partners or employees in breach of good faith; and
- d. the Financier has not made any representation, warranty or undertaking in relation to the Goods (other than as expressly set out in this Agreement).

6. Payment Obligations

6.1 The Customer must pay to the Financier the Payments and the Residual Value at the times referred to in the Schedule. The Customer's payment obligations are absolute and unconditional

and continue even if the Goods break down, are damaged, lost, stolen or destroyed (whether due to the Customer's actions or otherwise), and the Customer agrees not to exercise or seek to exercise any right or claim to withhold payment or claim any deduction or set-off in relation to any such matter.

6.2 The Customer must make any payments under this Agreement by way of direct debit or in such other manner as the Financier may from time to time direct in writing.

6.3 The Customer must pay or indemnify the Financier against all stamp duties, taxes (other than income tax), other duties, fees and fiscal imposts payable on or in respect of this Agreement, any amounts payable under this Agreement, the purchase or sale of the Goods and any other transaction evidenced by this Agreement. Should the amount actually payable to the relevant authority for any such duties, fees or imposts differ from the amount (if any) disclosed in the Schedule, the Customer will be notified and must pay to the Financier the amount of the deficiency (or the Financier will refund any excess, if applicable).

6.4 The Customer must pay or reimburse the Financier for the amount of any GST payable on any supply made by the Financier under or in connection with this Agreement (including, without limitation, any GST payable in connection with any Early Termination Amount). The Customer must pay this amount at the same time as it must pay for the relevant supply under this Agreement. The Customer must also pay or reimburse the Financier within 7 days after request for the amount of any GST payable by the Financier on the acquisition of the Goods (to the extent that the Financier is unable to claim an input tax credit in respect of such GST).

6.5 The Customer must pay the Financier any amounts that it may reasonably request to recover:

- a. any transaction fees, administrative fees or costs reasonably incurred by the Financier, including, but not limited to, any fees or costs incurred in seeking to recover any Payments or the Residual Value owed by the Customer to the Financier, in accordance with clause 6.1;
- b. any costs incurred in connection with any action taken by the Financier under or in relation to the PPSA, including any registration, or any response to an amendment demand or a request under section 275 of the PPSA, or any search of the PPS Register.

6.6 Subject to clause 6.2, all payments by the Customer must be paid on demand or as provided for in the Schedule in funds that are immediately available. If a date for payment:

- a. is not a Business Day, the payment must be made on the next Business Day; or
- b. falls on a day not contained in a month, the payment must be made on the last day of that month.

6.7 The Customer must pay for all registration fees, compulsory third party insurance and purchase stamp duty in relation to the Goods and consents to the Financier making payment of such amounts on behalf of the Customer.

7. Use and Care of the Goods

The Customer:

- a. must keep the Goods in the Customer's personal control;
- b. must ensure the Goods are used only in the Customer's general business operations and only for the purposes for which they were designed;
- c. must ensure the Goods are used only by qualified personnel complying at all times with all laws relating to the Goods and their use and with all instructions and recommendations issued by their supplier or manufacturer;
- d. acknowledges that if the law requires the Goods to be registered, the Customer must attend to this and ensure they remain registered at all times;
- e. must, at the cost of the Customer, ensure the Goods are maintained by qualified personnel in accordance with all instructions and recommendations issued by the supplier or manufacturer of the Goods and, if necessary, repaired by qualified personnel, so the Goods remain at all times in good working order and condition and subject to any applicable warranty;

- f. must not represent or imply that the Financier will pay for any cost in connection with repair or maintenance of the Goods;
- g. irrevocably authorises, and must use its best endeavours to have others authorise, the Financier to enter upon any premises (when it requests on reasonable notice) where it reasonably believes the Goods are located to examine their state of repair and operation or, if this Agreement has been terminated, to repossess the Goods;
- h. agrees that any replacement of, alteration or addition to, including any accessories, tools or other goods supplied with, installed in, or attached to, the Goods during the Term will become the property of the Financier and will be considered part of the Goods for the purposes of this Agreement;
- i. must not sell, dispose of, encumber, part with possession of or otherwise deal with the Goods or agree or attempt to do any of these things without the written consent of the Financier which will not be unreasonably withheld;
- j. has no authority to pledge the credit of the Financier or create any interest or right in, or over, the Goods (including any lien), and the Customer must notify all third parties of this provision before they work on the Goods;
- k. must notify the Financier of the usual location of the Goods from time to time and must not use them outside the State or Territory in which they are first delivered to the Customer without the consent of the Financier (which will not be unreasonably withheld);
- l. must not permit any Goods:
 - I. to become a fixture or an accession to; or
 - II. to be manufactured, processed, assembled or commingled with, anything that the Financier does not own or that is not subject to a perfected PPS Security Interest in favour of the Financier, and even then, only if the priority of that PPS Security Interest is no less favourable than the priority of the Financier's PPS Security Interest in those Goods, unless, in the case of paragraph (l)(i), the normal use of the Goods requires them to be affixed, in which case the Customer may request the consent of the Financier which will not be unreasonably withheld (subject to any conditions reasonably necessary to protect the Financier's interest as a secured party under this Agreement).

8. Insurance

8.1 The Customer must, at the Customer's own cost, effect and keep current throughout the Term (and during any period in which it has possession or control of the Goods) with a reputable and solvent insurer:

- a. insurance in respect of the Goods for their full insurable value against all loss or damage of any kind;
- b. insurance for such amount of cover as is reasonably required by the Financier (or if not specified by the Financier, for an amount a prudent owner of the Goods would obtain cover and in any event not less than \$10,000,000) having regard to the nature and intended use of the Goods, against any loss, damage or injury of any kind caused to any person or property arising out of the Goods or their use, under a policy covering all such risks, including claims by third parties; and
- c. insurance against any other loss, damage, injury or risk which the Financier may reasonably require from time to time.

8.2 The Customer must ensure that the interest of the Financier as owner of the Goods is noted on all insurances. The Customer must provide to the Financier on demand a certificate of currency in relation to the insurances which is satisfactory to the Financier and must ensure nothing is done or occurs which might prejudice or invalidate any insurances. The Financier may in its discretion, at any time, at the expense of the Customer, effect any insurances contemplated by this Agreement in its own name and on its own behalf including as an addition to the acquisition cost of the Goods.

8.3 The Financier is entitled to receive all amounts payable under any relevant insurance of the Goods or by any other person in respect of damage to, or loss of, the Goods and the Customer irrevocably appoints the Financier and each of its authorised representatives, as attorney for the Customer to recover or compromise in the respective names of the Financier and the Customer any claim for loss or damage under any of the insurances, and to give effectual releases and receipts. The Customer also irrevocably authorises the Financier to apply any

insurance or other moneys received (less any GST) in respect of any loss of, or damage to, the Goods towards any debt or liability, present or future, actual or contingent, of the Customer to the Financier or, in the discretion of the Financier, to repairing such damage or replacing the Goods. To the extent that those insurance moneys may be insufficient to effect such repairs, the Customer must apply its own moneys for this purpose

8.4 The Customer must promptly notify the Financier if the Goods are lost, stolen or damaged and make a claim for insurance within the relevant period.

9. Risks, Indemnities & Releases

9.1 The Customer assumes all risks and liability in relation to the Goods (including liability for injury to any person or damage to any property, whether direct or consequential) and indemnifies the Financier, its agents, contractors and employees against all loss, liabilities, taxes, costs and expenses (including reasonable legal expenses on a full indemnity basis), arising directly from, or in respect of:

- a. the Goods' delivery, installation, use, location, condition, operation, seizure, forfeiture or other confiscation, or on account of the Goods' loss, destruction, theft or damage however caused including loss of value resulting from insufficient, inadequate or faulty repair;
- b. any claim or demand made by any third party in relation to the Goods, including without limitation, any claim for the infringement of a patent, trademark, copyright or other intellectual property right;
- c. any damage to property or death of, or injury to, any person suffered or sustained in connection with the Goods or their use;
- d. any failure by the Customer to comply with its obligations under this Agreement or arising from any untrue or misleading representation, warranty or statement (including on tax matters) made by the Customer in, or in connection with, this Agreement (and which are not otherwise recoverable under this Agreement);
- e. any steps taken by the Financier to administer, exercise, enforce or preserve any of its rights under this Agreement;
- f. any new legislation or change in any legislation (including government revenue raising legislation), or any new or changed ruling, guideline, directive or requirement issued by any government authority, or any change in the interpretation of any of these things that affects this Agreement, the transactions evidenced by it, the obligations of the Financier under it or the financial return of the Financier under it; or;
- g. the early termination of this Agreement (to the extent not otherwise recoverable under this Agreement).

9.2 The Customer releases the Financier, to the full extent permitted by law, from all claims and demands of every kind arising out of the delivery, installation, location or use of the Goods, including any liability which may arise in respect of any accident or damage to property or death of, or injury to, the Customer or any other person of whatever nature or kind or arising out of any steps taken by the Financier to exercise, enforce or preserve its rights under this Agreement.

9.3 The indemnity in clause 9.1 and the release in clause 9.2 do not extend to anything referred to in those clauses to the extent that they occur due to the fraud, wilful misconduct or gross negligence of any of the Financier's (or the Financier's related entities') employees, contractors or agents.

9.4 The indemnities and releases set out in this Agreement continue in full force and effect notwithstanding the termination (however occurring) of this Agreement.

10. Termination

10.1 The Financier may terminate this Agreement if any of the following events occur:

- a. (failure to pay) the Customer fails to pay any amount due under this Agreement within 2 Business Days of its due date; or

- b. (repudiation) the Customer breaches any other essential provision of this Agreement or otherwise repudiates its obligations under this Agreement and the Financier considers that the breach or repudiation materially increases its risk as a lessor to the Customer of the Goods or adversely affects the Customer's ability to perform its obligations under this Agreement, unless the breach or repudiation can be rectified and is rectified within 10 Business Days after service of a notice by the Financier to the Customer; or
- c. (non-compliance with rectification notice) the Customer fails to observe any other obligation under this Agreement after first being given a notice by the Financier which requires such failure to be rectified within a period of at least 10 Business Days after service of the notice and the Financier considers that the failure materially increases its risk as a lessor to the Customer of the Goods or adversely affects the Customer's ability to perform its obligations under this Agreement; or
- d. (misrepresentation) any representation, warranty or statement made by the Customer in, or in connection with, this Agreement is untrue or misleading (whether by omission or otherwise) in any respect and the Financier considers that the misrepresentation materially increases its risk as a lessor to the Customer of the Goods or adversely affects the Customer's ability to perform its obligations under this Agreement, unless the matter the subject of the misrepresentation can be rectified and is rectified within 10 Business Days after service of a notice given by the Financier to the Customer; or
- e. (insolvency) the Customer enters into, or any steps are taken to have the Customer enter into, liquidation, provisional liquidation, receivership, receivership and management, administration, bankruptcy or any arrangement, reconstruction or composition with the Customer's creditors or any of them, or a controller is appointed with respect to any of the Customer's assets or the Customer fails to pay its debts as they fall due or the Customer otherwise becomes insolvent; or
- f. (insurance) the Customer fails to comply with a notice given by the Financier which relates to the occurrence of any of the following, where such notice requires those things to be rectified within a period of at least 2 Business Days:
 - I. any insurance required under this Agreement lapses or is cancelled or any insurer disclaims liability; or
 - II. the Financier receives notice that any insurance will be cancelled or materially adversely modified and a fresh policy is not effected to the satisfaction of the Financier before expiration of the notice; or
- g. (cross default) the Customer fails to comply with any of its obligations under any other agreement or arrangement with the Financier or any related body corporate of the Financier, or under any guarantee, indemnity or undertaking given to the Financier or any related body corporate of the Financier where such failure is not rectified within 5 Business Days (or any longer period applying under the relevant agreement or arrangement) after the Financier or its related body corporate (as applicable) gives a notice to do so and the Financier is of the reasonable view that such failure would have a material adverse effect on the Customer's ability to perform its obligations under this Agreement; or
- h. (jeopardy) the Financier determines in its reasonable opinion that there is a serious risk of loss or damage to the Goods for any reason.

10.2 Following termination under clause 10.1, the Financier may claim damages from the Customer on account of the Financier's losses and costs resulting from the termination.

10.3 Without limiting the essentiality of any other term of this Agreement, the obligations to pay the Payments and the Residual Value on time, to maintain and insure the Goods and to keep the Goods under the personal control of the Customer and free of any third party interest, and the non-occurrence of anything referred to in clause 10.1(e), are essential terms of this Agreement. The Customer will be taken to have repudiated its obligations under this Agreement if it does not comply with any of the essential terms of this Agreement, and the Financier may then terminate this Agreement.

10.4 The Customer may terminate this Agreement before the end of the Term if it pays the Early Termination Amount in accordance with this Agreement and does the other things required by clauses 20 and 21.

11. Guarantee and Indemnity

11.1 The Guarantor acknowledges and agrees that the Financier is entering into this Agreement in reliance on this Guarantee and Indemnity from the Guarantor.

11.2 In consideration of the Financier agreeing to enter into this Agreement with the Customer, the Guarantor guarantees that the Customer will pay the Financier all amounts payable by the Customer under this Agreement from time to time (the "Guaranteed Money"). This Guarantee and Indemnity continues until all the Guaranteed Money has been paid in full and the Financier reasonably determines that no amount received by it on account of the Guaranteed Money may have to be refunded or repaid under any law relating to insolvency. The Guarantor acknowledges and agrees that this Guarantee and Indemnity extends to all obligations and liabilities of the Customer arising in connection with the Agreement

11.3 If the Financier asks, the Guarantor must pay the Financier any Guaranteed Money that the Customer does not pay to the Financier when it is due. The Financier does not need to first ask the Customer to pay the Financier.

11.4 The Guarantor indemnifies the Financier against, and the Guarantor must pay to the Financier on demand, all losses or costs the Financier suffers or incurs if:

- a. the Customer does not, is not obliged to, or is unable to, pay the Financier any Guaranteed Money when due; or
- b. the Guarantor is not obliged to pay the Financier an amount under clauses 11.2 or 11.3; or
- c. the Financier is obliged, or the Financier agrees, to pay an amount to a trustee in bankruptcy or liquidator in connection with a payment by the Guarantor or the Customer.

11.5 The indemnity in clause 11.4 is a continuing obligation, separate and independent from the Guarantor's other obligations under this Guarantee and Indemnity. It continues after those other obligations end.

11.6 The Guarantor must pay to the Financier:

- a. the Financier's reasonable costs in arranging, administering (including enforcing, or taking any other action in connection with, the Financier's rights) and terminating this Guarantee and Indemnity; and
- b. all stamp and other duties, fees, taxes and charges payable in connection with this Guarantee and Indemnity and any transaction (such as a payment or receipt) under it and any interest, penalties, fines and expenses in connection with them.

11.7 The indemnity in clause 11.6 for taxes includes any amount which the Financier is obliged to pay to another person to enable that other person to pay a tax.

11.8 The Guarantor must pay interest calculated on daily balances on any amount the Guarantor owes under this Guarantee and Indemnity from the date the Financier asks the Guarantor for the amount until the Guarantor pays it. This interest is to be calculated and is payable at the rate that the Financier reasonably determines to be the cost to it from time to time of funding the unpaid amount.

11.9 The Guarantor acknowledges that a trustee in bankruptcy, liquidator or similar person may ask the Financier to refund a payment that the Financier has received in connection with the Guaranteed Money or this Guarantee and Indemnity. To the extent the Financier is obliged to, or the Financier agrees to, make a refund, the Financier may treat the original payment as if it had not been made. The Financier is then entitled to its rights against the Guarantor under this Guarantee and Indemnity as if the payment had never been made.

11.10 Rights given to the Financier under this Guarantee and Indemnity and the Guarantor's liabilities under it are not affected by any act or omission by the Financier or by anything else that might otherwise affect them under any law relating to guarantees and indemnities.

11.11 This Guarantee and Indemnity does not merge with or adversely affect:

- a. any other guarantee, indemnity or security, or right or remedy to which the Financier is entitled at any time; or
- b. a judgment or order which the Financier obtains against the Guarantor in respect of an amount payable under this Guarantee and Indemnity.

The Financier can still exercise its rights under this Guarantee and Indemnity as well as under the judgment, order, other guarantee, indemnity or security.

11.12 As long as an amount payable under this Guarantee and Indemnity remains unpaid, the Guarantor may not, without the Financier's prior written consent:

- a. reduce the Guarantor's liability under this Guarantee and Indemnity by claiming that the Guarantor or the Customer or any other person has a right of set-off or counterclaim against the Financier; or
- b. exercise any legal rights to claim to be entitled to the benefit of another guarantee, indemnity or security given in connection with any of the Guaranteed Money or an amount payable under this Guarantee and Indemnity; or
- c. claim an amount from the Customer or another Guarantor of the Customer's obligations under a right of indemnity; or
- d. claim an amount in the insolvency of the Customer or another Guarantor of the Customer's obligations under this Agreement (including a person who has signed this Guarantee and Indemnity).

11.13 The Guarantor acknowledges that the Guarantor is responsible for making itself aware of the financial position of the Customer and any other person who guarantees the Customer's obligations under this Guarantee and Indemnity.

11.14 The Guarantor declares that it does not enter into this Guarantee and Indemnity as a trustee, unless the Guarantor has provided the Financier with prior written notice in respect of such trust capacity. If the Guarantor is a trustee, clause 17.13 applies equally to the Guarantor and each reference to "Customer" in those clauses is taken to be a reference to the Guarantor.

11.15 The Guarantor must pay any amount payable to the Financier under this Guarantee and Indemnity promptly following demand by the Financier.

11.16 The Guarantor must promptly do anything the Financier asks (such as obtaining consents, signing and producing documents and getting documents completed and signed) to bind itself under this Guarantee and Indemnity.

11.17 The Financier may claim against the Guarantor under this Guarantee and Indemnity before the Financier enforces any of its rights:

- a. against the Customer or any other person; or
- b. under another document such as a guarantee or security.

11.18 The Financier may use any money paid by or for the Customer towards meeting any part the Financier chooses of the amounts the Customer owes the Financier (including meeting any amount the Guarantor does not guarantee). The Financier may use any money paid by the Guarantor under this Guarantee and Indemnity towards paying any part the Financier chooses of the amounts the Guarantor owes the Financier under this Guarantee and Indemnity.

12. Title to the Goods

12.1 The Customer:

- a. acknowledges that the Financier may at any time affix identifying plates or marks on the Goods and the Customer agrees to provide the Financier with access to the Goods to enable this to be done; and
- b. must refrain from doing anything which could give rise to any claim adverse to the Financier's ownership of, and PPS Security Interest in the Goods.

12.2 If the Financier becomes entitled to repossess the Goods, the Customer irrevocably authorises the Financier to enter upon any land or premises where it reasonably believes the Goods are located and to repossess the Goods.

13. Ancillary matters

If any Payments include amounts payable for the maintenance of the Goods or for the provision of other services (or for recovery by the Financier of funding of maintenance and other services), whether or not these amounts are separately identified in the Schedule, the Customer agrees and acknowledges that:

- a. the Customer has had the opportunity to request an itemisation of the charges and the charges have been included at the request of the Customer;
- b. the Customer has directed the Financier to pay those charges to the person providing the services ("Service Provider") or to retain those amounts if the Financier has already paid the relevant maintenance or service charges to the Service Provider;
- c. the Financier is not responsible for the maintenance of the Goods or the provision of any services;
- d. the obligations of the Customer:
 - I. to pay the Payments and other amounts payable under this Agreement free of any deduction, withholding or set-off on any account; and
 - II. to perform its other obligations under this Agreement, continue despite the failure of any third party to provide maintenance of the Goods or provide any other services (either in accordance with the customer's requirements or at all).

14. Where the Goods Include Software

If the Goods include software or the licensing of any software is funded by the Financier under or in connection with this Agreement:

- a. where the Financier has been granted a licence to use the software, the Customer may enjoy the benefit of the licence during the Term (and any applicable holding over period) to the extent that the licence permits;
- b. the Customer has relied on its own enquiries relating to the condition, specifications, quality, fitness for purpose, suitability or safety of the software and the Customer cannot refuse to pay the Payments or make any other claims should the software be unsuitable or not fit for purpose;
- c. the Financier makes no representation about the terms of any licence relating to the software and the Customer must rely on its own enquiries in this regard; and
- d. where the Customer is required to return the Goods to the Financier at the expiration or earlier termination of this Agreement, the Customer must also return the software to the Financier and assigns to the Financier all rights it may have under any licence to use the software.

15. Loss or Damage

15.1 If the Goods or any item or items of the Goods (the "**Affected Goods**") are lost, stolen or damaged beyond economic repair, the Customer must immediately notify the Financier, and within 5 Business Days of notification, the Customer must either:

- a. replace the Affected Goods at the cost of the Customer with goods approved by the Financier being at least equivalent in type, functionality and value; or
- b. pay to the Financier by way of indemnity the aggregate of the following amounts as notified by the Financier:
 - I. the Payments (if any) then due and payable by the Customer to the Financier in respect of the Affected Goods; and
 - II. the Early Termination Amount referable to the Affected Goods, calculated as at the date of the Financier's notice (for this purpose the value of the Affected Goods will be taken to be nil). The Customer must pay the aggregate of these amounts within 2 Business Days of the date of the Financier's notice
- III. the amount which the Financier notifies the Customer is, as at the date of the Financier's notice, the residual value referable to the Affected Goods (being the residual value assumed by the Financier in calculating the Payments, adjusted in accordance with the Financier's usual procedures to include its required investment return on the relevant residual value up to that date). The Customer must pay the aggregate of these amounts within 2 Business Days of the date of the Financier's notice.

15.2 If the Customer replaces the Affected Goods in accordance with clause 15.1(a), then the Customer must ensure that the Financier obtains clear title to the replacement goods and the priority of the Financier's PPS Security Interest in the replacement goods is no less favourable than the priority of its PPS Security Interest in the Affected Goods. The replacement goods shall be taken to be the Goods (or the relevant item or items of the Goods as the case may be) for the purposes of this Agreement.

15.3 If clause 15.1(b) applies, then, upon receipt by the Financier of the amount payable by the Customer under clause 15.1(b) in respect of the Affected Goods:

- a. this Agreement will terminate in relation to the Affected Goods;
- b. this Agreement will continue with respect to any remaining item or items of the Goods, with new Payments applying as from the next due date for a Payment, being the Payments otherwise payable less the proportion of the Payments which the Financier calculates was payable in respect of the Affected Goods; and
- c. the Financier will make a pro rata adjustment (where applicable) to any Payments already paid in respect of the Affected Goods for the period from receipt of the payment referred to in clause 15.1(b) to the next date on which a Payment falls due.

15.4 If the Financier receives any insurance proceeds in respect of the Affected Goods:

- a. where the Customer has replaced the Goods in accordance with clause 15.1(a), such proceeds (net of GST) will be credited to the Customer; and
- b. where clause 15.1(b) applies, such proceeds (net of GST) will be credited to the Customer to the extent of the payment received from the Customer under clause 15.1(b)(ii).

16. Occupational Health and Safety

16.1 The Customer acknowledges that during the term of this Agreement the Customer will have sole possession and control of the Goods.

16.2 For the purposes of enabling the Financier to comply with its obligations under any applicable occupational health and safety law ("**OH&S Law**"), the Customer undertakes:

- a. before taking possession of, using or dealing with the Goods, to:
 - I. obtain all available information concerning health and safety about the Goods from the designer or manufacturer of such Goods, including, without limitation, (where applicable) obtaining all records kept by any previous owner of the Goods and obtaining any information, data or certificates provided or kept in accordance with the OH&S Law; and
 - II. ensure that the Goods are inspected and tested in accordance with the requirements set out in the OH&S Law and that the Customer obtains written notification of any faults detected in respect of the Goods and (if applicable) receives written notification that the Goods are not to be used until the faults are rectified;
- b. before the date upon which any Goods are returned or repossessed, to:
 - I. do all things necessary to ascertain whether or not the Goods are suitable only for use as scrap or for spare parts; and
 - II. provide to the Financier upon demand any information required to be obtained or collected by the Customer pursuant to this clause 16.2.

16.3 The Customer indemnifies the Financier against any loss or liability arising from the Customer's failure to comply with its obligations under clause 16.2.

17. General Provisions

17.1 Assignment: The Financier may assign, transfer or otherwise deal with its interest in the Goods (subject only to the rights of the Customer under this Agreement) or all or any part of the Financier's rights or obligations under this Agreement without the consent of the Customer. The Customer must not assign, transfer or otherwise deal with any of its rights under this Agreement without the Financier's prior written consent (which will not be unreasonably withheld).

17.2 Rights: Termination of this Agreement by the Financier will not

prejudice its rights, powers and remedies with respect to any antecedent breach by the Customer under this Agreement. All rights of the Financier under this Agreement are in addition to its rights under the general law.

17.3 Evidence: A certificate signed by any officer or manager of the Financier containing statements as to an amount due by the Customer under this Agreement, the occurrence of any event or the existence of any fact, will be sufficient evidence of the amount, event or fact, unless they are proved to be untrue.

17.4 Product Information: The Customer requests the Financier to provide it from time to time with information on its other products or services.

17.5 Financial Information: The Customer must provide the Financier with any information relating to its financial position, business, assets and affairs as the Financier reasonably requests, promptly following that request.

17.6 Notices: Any notice or demand to be given by the Financier under this Agreement may be served on the Customer by being left at or sent by prepaid mail or transmitted by facsimile to its address set out in the Schedule or otherwise as notified in writing to the Financier. The notice or demand will be treated as having been given and received:

- a. if delivered, on the day of delivery;
- b. if sent by pre-paid mail, on the next delivery day; and
- c. if transmitted by facsimile, on the day of transmission if a Business Day, or otherwise on the next Business Day.

17.7 Overdue Payments: The Customer must pay to the Financier on demand interest calculated at the Financier's then current overdue interest rate for similar transactions on any amounts payable under this Agreement which are overdue, calculated on a daily basis for the respective periods from the date the amounts became due to the date of payment. Unpaid interest under this clause will compound monthly. If a liability under this Agreement becomes merged in a judgment or order, the Customer, as an independent obligation, must pay interest on the amount of that liability from the date the liability becomes payable (both before and after the judgment or order) at the higher of the rate payable under this clause and the rate payable under that judgement or order

17.8 No Waiver: No waiver by the Financier in relation to any breach of this Agreement by the Customer will be deemed a waiver of any continuing or recurring breach.

17.9 Commission: The Customer consents to the Financier paying a commission or brokerage to any third party in relation to this Agreement. The Customer acknowledges that any third party which submitted this Agreement to the Financier is not and was not the Financier's agent for any purpose and is the Customer's agent. Commission or brokerage may be included in the cost of the Goods itemised in the Schedule.

17.10 Authority to Complete Schedule: The Customer authorises the Financier to complete and amend any blank, incomplete or inaccurate particular appearing in the Schedule and to otherwise complete all necessary formalities to render this Agreement complete and enforceable. The Financier will notify the Customer of the amendments.

17.11 Financier May Act on omissions: If the Customer neglects to pay any amount or take any other action required by this Agreement, the Financier may pay that amount or take that other action and recover such costs from the Customer. The Financier may enter and remain upon the Customer's land or premises for this purpose.

17.12 Set-Off: The Customer irrevocably authorises the Financier to set off without notice any amount held by the Financier on any account of the Customer against any amount owing by the Customer to the Financier or any related body corporate of the Financier.

17.13 Trust Provisions: If the Customer enters into this Agreement as a trustee, the Customer acknowledges and agrees that it does so for a proper purpose of the trust, with full power and authority under the trust to enter into this Agreement and that it has the right to be

indemnified fully out of the trust property before the beneficiaries of the trust for all liabilities incurred by the Customer under this Agreement. The Customer will be liable in its own capacity for all of the obligations under this Agreement as well as in its capacity as trustee of any trust.

17.14 Governing Law: This Agreement is governed by the law of the State or Territory referred to in the Schedule or if none is referred to in the Schedule, then the laws of New South Wales.

17.15 Sever Invalid Provisions: If any provision of this Agreement is found to be invalid or unenforceable in any jurisdiction, it will have no force or effect in that jurisdiction and will be severed from this Agreement in that jurisdiction without affecting the remaining provisions and without affecting the operation of this Agreement in any other jurisdiction.

17.16 Conditions of Consent: The Financier may or may not grant any consent or approval under this Agreement in its absolute discretion and upon such conditions as it may reasonably determine.

17.17 Agency: The Financier may enter into this Agreement as agent for another person (whether disclosed or not).

17.18 Authority to Sign: The person or persons who have executed the Schedule warrant that they have the authority and delegated power to execute this Agreement on behalf of the Customer.

17.19 Read Down Invalid Provisions: If any law making unfair contract terms invalid or unenforceable could apply to a term in this Agreement, the term will be interpreted in accordance with the following rules:

- a. Where the law would make the term void because it permits the Financier to exercise a right or discretion in a way or to an extent that would cause detriment to the Customer, the term will be read down to avoid such detriment but will otherwise permit the Financier to fully exercise the right or discretion in accordance with the term.
- b. Where the law would make the term void because it imposes a particular amount for a fee or charge, the term will be read down as authorising the maximum amount for that fee or charge which would not cause the term to be invalid or unenforceable.
- c. If the law would make the term void because it authorises the Financier to recover costs, losses or damages in accordance with certain calculations, the term will be read down as authorising the Financier to recover the maximum reasonable costs, losses or damages calculated in a reasonable way that do not cause the term to be invalid or unenforceable.
- d. If the law would make the term invalid or unenforceable despite the application of rules (a), (b) and (c) above, the term will be read down as if it were varied, to the minimum extent necessary, so that the term is not invalid or unenforceable.

17.20 PPSA:

- a. The Customer warrants that where the Goods include Serial Numbered Property, it has provided the Financier with the serial numbers that the Financier would require to make an effective registration against all such serial numbered property in accordance with the PPSA. The Customer must not change or remove the serial number of any serial numbered property after it has disclosed the relevant number to the Financier.
- b. The Customer waives its right under section 157 of the PPSA to receive notice of any verification statement.
- c. The Financier and the Customer agree with each other not to disclose information of the kind mentioned in section 275(1) of the PPSA, except in circumstances required by sections 275(7)(b) to (e) of the PPSA. The Customer agrees that it will only authorise the disclosure of information under section 275(7)(c) or request information under section 275(7)(d) if the Financier approves. Nothing in this clause will prevent any disclosure by the Financier if it believes it is necessary to comply with its other obligations under the PPSA.

- d. To the extent that it is not inconsistent with clause 17.20(c) constituting a “confidentiality agreement” for the purposes of section 275(6)(a) of the PPSA, the Customer agrees that the Financier may disclose information of the kind mentioned in section 275(1) of the PPSA to the extent that the Financier is not doing so in response to a request made by an “interested person” (as defined in section 275(9) of the PPSA) pursuant to section 275(1) of the PPSA.
- e. To the extent that Chapter 4 of the PPSA would otherwise apply to an enforcement by the Financier of any PPS Security Interest provided for by this Agreement, the Financier and the Customer agree with each other that the following provisions of the PPSA do not apply:
 - I. to the extent that section 115(1) of the PPSA allows them to be excluded: sections 95, 118, 121(4), 125, 130, 132(3)(d), 132(4), 135, 138B(4), 142 and 143; and
 - II. in addition, to the extent that section 115(7) of the PPSA allows them to be excluded: sections 127, 129(2) and (3), 132, 134(2), 135, 136(3), 136(4), 136(5) and 137.
- f. If section 115(1) of the PPSA does not allow section 125 of the PPSA to be excluded, the Customer agrees that at any time after any PPS Security Interest provided for by this Agreement has become enforceable, the Financier may delay disposing of, or taking action to retain, the whole or part of the collateral to the extent permitted by law.

18. Interim Period

In addition to the Customer’s payment obligations under clause 6, if the Commencement Date occurs after the Acceptance Date, then the Customer also agrees to lease the Goods from the Financier during the period from the Acceptance Date to the Commencement Date (the “Interim Period”) and to pay to the Financier on demand an additional amount equal to the Payment for the first payment period multiplied by the number of days in the Interim Period and divided by the number of days in that payment period. Payment of this additional amount is in addition to all other obligations to pay the Payments throughout the Term.

19. Repossession of Goods

In addition to the Financier’s right to terminate, the Financier may also repossess the Goods if any of the events under clause 10.1 or 10.3 occurs. If no prior notice of termination is given, repossession of the Goods under this clause will itself terminate this Agreement.

20. Procedure on Expiry or Termination

On expiry of the Term, or if the Financier terminates this Agreement under clause 10.1 or 10.3, the Customer must:

- a. at its cost, immediately deliver up the Goods in good working order and condition (reasonable wear and tear excepted) to the Financier at the place directed by the Financier together with any duly executed transfer of registration and such records regarding the Goods as required by the Financier, failing which the Financier may repossess the Goods;
- b. pay the Financier on demand all amounts which fell due prior to termination and which remain outstanding
- c. pay the Financier on demand, by way of indemnity for its loss arising from the termination, the Early Termination Amount; and
- d. pay the Financier on demand the Financier’s Costs of Repossession, if the Goods are not returned to the Financier in accordance with clause 20(a).

21. Residual Value

21.1 If, when this Agreement expires or is terminated, the Customer returns the Goods to the Financier or the Financier retakes possession of them, the Financier must do one of the following things at the Financier’s option:

- a. Try to sell the Goods. The Financier may do this by public auction or by private sale (to a wholesaler or a retailer), may repair or recondition the Goods before sale (but need not do so) and may delay offering the Goods for sale for up to 90 days. The only restriction on the Financier is that it must act genuinely
- b. Obtain a valuation of the fair wholesale value of the Goods. The Financier may choose the valuer. If the Financier obtains more than one valuation then it may rely upon the average of them. The only restrictions on the Financier are that the valuer is independent of it and that it acts genuinely. Even if the Financier

obtains a valuation of the Goods it may subsequently sell the Goods for more or less than the valuation.

21.2 If the Financier has been unable to sell any item of the Goods 60 days after the Financier first offered it for sale then its value is to be taken to be nil.

21.3 If, when this Agreement expires or is terminated, the Customer does not return any item of the Goods to the Financier and the Financier does not otherwise recover possession of it, then its value is to be taken to be nil.

21.4 Upon the expiry or termination of this Agreement, the Customer must pay to the Financier upon demand, in addition to any other amounts which the Customer is required to pay under this Agreement, the total of the following:

- a. the Residual Value specified in the Schedule; and
- b. if the Financier has obtained possession of the Goods, the Financier’s costs and expenses of storing, valuing, repairing, reconditioning, insuring and selling or attempting to sell the Goods

21.5 If this Agreement is terminated early, the Financier will discount the Residual Value by applying the Discount Rate over the period from the date of termination until the expiry of the Term, and the Customer need only pay the discounted amount

21.5 The Residual Value is payable by the Customer by way of indemnity against the Financier’s capital loss, in view of the fact that under clause 9.1 the Customer has assumed all risks relating to the Goods.

21.5 The Financier will refund or credit to the Customer as applicable:

- a. the value of the Goods determined in accordance with clause 21.1(b), 21.2 or 21.3; or
- b. (b) the amount actually received by the Financier on sale of the Goods, but the total amount so refunded or credited will not exceed the total amount paid or payable by the Customer in accordance with paragraph 21.4(a) or 21.5.

22. Telecommunications Equipment

The Telecommunications equipment (if any) being provided to the Customer is owned by the Financier. The Financier is an equipment financier only. It does not supply telecommunications services. The payments the Customer must make to the Financier under the Agreement do not include payments for any telecommunications services. If the Customer is renting or leasing the telecommunications equipment as part of an arrangement with a telecommunications equipment and services provider, that provider is responsible for any telecommunications services. The Customer must continue to make any Payments due to the Financier even if the telecommunications services are not provided or are defective

23. Interpretation

In this Agreement, unless the context otherwise requires:

- a. a reference to a party (including you or us) includes that party’s successors, personal legal representatives and permitted assigns
- b. if any party comprises more than one person, those persons’ obligations are joint and several; and
- c. the singular includes the plural and vice versa.

CONSENT TO ELECTRONIC EXECUTION AND ELECTRONIC COMMUNICATIONS

To: Nexgen Capital Pty Limited trading as Nexgen Equipment Rentals ABN 32 606 252 957

Electronic signing and communications

The below is a consent to this agreement and all other related or required documents (including any privacy consent, business purpose declaration and direct debit request) ("**Documents**") being signed electronically. The consent below should be given by you, if you agree that all Documents relating to this transaction ("**Transaction**") can be signed electronically and communications in respect of the Transaction can be given electronically.

By signing this agreement below you:

- consent to the use of the DocuSign system to meet any signing requirements, and to giving and receiving communications, notices and Documents electronically, in respect of the Transaction;
- agree that the DocuSign system is sufficiently reliable and appropriate for this purpose;
- acknowledge and agree to the use of the email address that you have provided as the method to identify you and to indicate your intention in relation to any communications or notices given or Documents signed using the DocuSign system;
- warrant that the email address that you have provided is personal to you, and is not shared with any other person;
- warrant that, where your signature is required to be witnessed in any Document, your signature will be witnessed by an independent third party who is not involved in the Transaction;
- acknowledge that we consent to you executing those Documents electronically;
- consent to us executing any Documents electronically; and
- acknowledge and agree that:
 - you may not receive a hard copy of the Documents or their content and further paper documents and correspondence may no longer be given;
 - you should check the email address that you have provided regularly for communications going forward; and
 - your consent to electronic communication may be withdrawn at any time.

For the purposes of the above consent:

"**We**", "**our**", "**us**" means Nexgen Capital Pty Limited trading as Nexgen Equipment Rentals ABN 32 606 252 957.

"**You**" means the party or parties named below who has/have signed this agreement.

I/we have read and understood the above.

Full Name:	Signature:	If this is an electronic document, the adjacent is my signature and my execution of this electronic document.	Date
Arthur Conan Doyle			18/05/2021